

**SUBSTITUTE FOR
HOUSE BILL NO. 5940**

A bill to amend 1925 PA 368, entitled

"An act to prohibit obstructions and encroachments on public highways; to provide for the removal of obstructions and encroachments on public highways; to prescribe the conditions under which telegraph, telephone, power, and other public utility companies, cable television companies, broadband companies, and municipalities may enter upon, construct, and maintain telegraph, telephone, power, cable television, or broadband lines, pipe lines, wires, cables, poles, conduits, sewers, and like structures upon, over, across, or under public roads, bridges, streets, and waters; and to prescribe penalties and provide remedies,"

by amending section 13 (MCL 247.183), as amended by 2018 PA 565, and by adding section 13a.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 13. (1) Except as otherwise provided under subsection
2 (2), telegraph, telephone, power, and other public utility



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1 companies, cable television companies, broadband companies, and
2 municipalities may enter upon, construct, and maintain telegraph,
3 telephone, or power lines, pipelines, wires, cables, poles,
4 conduits, sewers or similar structures upon, over, across, or under
5 any public road, bridge, street, or public place, including,
6 longitudinally within limited access highway rights-of-way, and
7 across or under any of the waters in this state, with all necessary
8 erections and fixtures for that purpose. A telegraph, telephone,
9 power, and other public utility company, cable television company,
10 broadband company, and municipality, before any of this work is
11 commenced, shall first obtain the consent of the governing body of
12 the city, village, or township through or along which these lines
13 and poles are to be constructed and maintained.

14 (2) A utility as defined in 23 CFR 645.105 may enter upon,
15 construct, and maintain utility lines and structures, including
16 pipelines, longitudinally within limited access highway rights-of-
17 way and under any public road, street, or other subsurface that
18 intersects any limited access highway at a different grade, in
19 accordance with standards approved by the state transportation
20 commission and the Michigan public service commission that conform
21 to governing federal laws and regulations and is not required to
22 obtain the consent of the governing body of the city, village, or
23 township as required under subsection (1). **Subject to section 13a,**
24 **the standards must allow for the collocation of projects, including**
25 **aboveground lines and structures, in limited access highway rights-**
26 **of-way.** The standards must require that the lines and structures ~~be~~
27 ~~underground and~~ be placed in a manner that will not increase
28 highway maintenance costs for the state transportation department.
29 The standards may provide for the imposition of a reasonable charge



1 for longitudinal use of limited access highway rights-of-way. The
2 imposition of a reasonable charge is a governmental function,
3 offsetting a portion of the capital, maintenance, and permitting
4 expense of the limited access highway, and is not a proprietary
5 function. The charge must be calculated to reflect a 1-time
6 installation permit fee that does not exceed \$1,000.00 per mile of
7 longitudinal use of limited access highway rights-of-way with a
8 minimum fee of \$5,000.00 per permit. If the 1-time installation
9 permit fee does not cover the reasonable and actual costs to the
10 department in issuing the permit, the department may assess the
11 utility for the remaining balance. All revenue received under this
12 subsection must be used for capital and maintenance expenses
13 incurred for limited access highways, including the cost of issuing
14 the permit.

15 (3) If a city, village, township, county, or county road
16 commission or the state transportation department requests or
17 requires an entity holding a license under the Michigan
18 telecommunications act, 1991 PA 179, MCL 484.2101 to 484.2603, or
19 holding a franchise under the uniform video services local
20 franchise act, 2006 PA 480, MCL 484.3301 to 484.3315, to relocate
21 facilities, the city, village, township, county, or county road
22 commission or the state transportation department may require the
23 entity to obtain a permit for the relocation of the facilities but
24 shall waive any permit fees including, but not limited to, any
25 permit fee under subsection (2). This subsection does not apply if
26 the request to relocate facilities was due to an entity placing
27 facilities in a location not authorized by a current or previous
28 permit.

29 (4) A person engaged in the collection of traffic data or the



1 provision of travel-related information or assistance may enter
2 upon, construct, and maintain electronic devices and related
3 structures within limited access and other highway rights-of-way in
4 accordance with standards approved by the state transportation
5 commission that conform to governing federal laws and regulations.
6 The standards must require that the devices and structures be
7 placed in a manner that will not impede traffic and will not
8 increase maintenance costs for the state transportation department.
9 The state transportation department may enter into agreements to
10 authorize the use of property acquired for or designated as a
11 highway or acquired for or designated for ancillary purposes for
12 the installation, operation, and maintenance of commercial or
13 noncommercial electronic devices and related structures for the
14 collection of traffic data or to assist in providing travel-related
15 information or assistance to motorists who subscribe to travel-
16 related services, the public, or the department. Any revenue
17 generated by the agreements must be deposited in the state trunk
18 line fund established under section 11 of 1951 PA 51, MCL 247.661.
19 The department may accept facilities or in-kind services to be used
20 for public purposes in lieu of, or in addition to, monetary
21 compensation.

22 **Sec. 13a. (1) On the written request of a utility, an**
23 **independent transmission company, or an affiliated transmission**
24 **company, the state transportation department shall coordinate with**
25 **that utility, independent transmission company, or affiliated**
26 **transmission company to review requested highway corridors for**
27 **permissible locations for transmission lines.**

28 **(2) The state transportation department shall share all known**
29 **plans with a utility, independent transmission company, or**



1 affiliated transmission company regarding potential future projects
2 that may impact the placement of a transmission line by that
3 utility, independent transmission company, or affiliated
4 transmission company.

5 (3) If a permittable route along a highway corridor has been
6 identified by the state transportation department and the utility,
7 independent transmission company, or affiliated transmission
8 company, the state transportation department must consult with the
9 utility, independent transmission company, or affiliated
10 transmission company to prepare a constructability report to be
11 utilized by the state transportation department and the utility,
12 independent transmission company, or affiliated transmission
13 company when collocation projects are being planned and approved.
14 The report must be approved by both the state transportation
15 department and the utility, independent transmission company, or
16 affiliated transmission company before the state transportation
17 department issues a permit for use of the highway right-of-way.

18 (4) The constructability report described in subsection (3)
19 must include the terms and conditions for building the collocation
20 project, including an agreed-on time frame during which the state
21 transportation department shall not request the relocation of the
22 transmission line as it is practicable.

23 (5) If a substantial change to the state transportation
24 department's 5-year plan is necessary due to unforeseen
25 circumstances in a location that a utility, independent
26 transmission company, or affiliated transmission company has
27 submitted a written request to collocate, after an updated 5-year
28 plan is published but before the next 5-year plan is set to be
29 published, the state transportation department must inform that

1 utility, independent transmission company, or affiliated
2 transmission company in writing as soon as is practical.

3 (6) As used in this section, "transmission line" means a high-
4 voltage transmission line.